AFFIDAVIT OF PUBLICATION

DAILY TIMES-CALL

State of Colorado
County of Boulder

I, the undersigned agent, do solemnly swear that the DAILY TIMES-CALL is a daily newspaper printed, in whole or in part, and published in the City of Longmont, County of Boulder, State of Colorado, and which has general circulation therein and in parts of Boulder and Weld Counties; that said newspaper has been continuously and uninterruptedly published for a period of more than six months next prior to the first publication of the annexed legal notice of advertisement, that said newspaper has been admitted to the United States mails as second-class matter under the provisions of the act of March 3, 1879, or any amendments thereof, and that said newspaper is a daily newspaper duly qualified for publishing legal notices and advertisements within the meaning of the laws of the state of Colorado; that a copy of each number of said newspaper, in which said notice of advertisement was published, was transmitted by mail or carrier to each of subscribers of said newspaper, according to the accustomed mode of business in this office.

That the annexed legal notice or advertisement was published in the regular and entire edition of said daily newspaper once; and that one publication of said notice was in the issue of said newspaper date November 3, 2006

Marlene Van Dyke
Agent

Subscribed and sworn to before me this 3rd day of November 2006

Judy Lammers
Notary Public

FEE $ 50.49

NOTARY PUBLIC JUDY LAMMERS STATE OF COLORADO

MY COMMISSION EXPIRES
OCTOBER 4, 2008
637 RIDER RIDGE DR.
LONGMONT
COLORADO 80501

PUBLIC HEARING BOULDER COUNTY, COLORADO PLANNING COMMISSION

DATE: November 15, 2006
TIME: 1:30 P.M. (Afternoon Session)
5:30 P.M. (Evening Session)
PLACE: Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that the following public hearing(s) will be held by the County Planning Commission at the time and place specified above. All persons interested in the following items are requested to attend such hearing and aid the Commission members in their consideration.

AFTERNOON SESSION - 1:30 P.M.

Docket V-06-007: RIDGLEA HILLS (Ellis) Easement Vacation

Request for Approval of a vacation of a 50-foot wide platted easement for a gas line that is no longer in use; by Owen Ellis; in accordance with the Boulder County Land Use Code. The proposed project is located in the Forestry (F) Zoning District, at 981 Ravenwood Road, Lots 4-7 Block 4, and Lots 1, 2 and 4-6 Block 5 of Ridglea Hills, in Section 35, T1N, R70W.

Docket SU-06-016: CINGULAR WIRELESS (CEMEX Inc.) Telecommunications Facility SU/SSDP

Request for Approval of a Special Use Review / Site Specific Development Plan for a telecommunications facility to allow four (4) groups of panel antennas and attendant equipment at the top of the CEMEX cement plant silo. The antennas will be mounted flush with the side of the silo, and the equipment will be placed on the roof deck of the silo; by Cingular Wireless c/o Rick Sullivan (Applicant) / CEMEX, Inc. c/o Nolan Fry (Property Owner); in accordance with the Boulder County Land Use Code. The proposed project is located in the Agricultural (A) Zoning District, at 5134 Ute Hwy., south of Ute Hwy., east of North Foothills Hwy., in Sections 20, 21, 27, 28, and 29, T3N, R70W

Docket SU-06-006 GUERCIO Telecommunications Facility SU/SSDP

Request for Approval of a Special Use Review / Site Specific Development Plan review for a 140 foot tall tower (Telecommunication Facility requiring a new structure and exceeding the height limitation of the zoning district); by James W Guercio; in accordance with the Boulder County Land Use Code. The proposed property is located in the Forestry (F) Zoning District, at 99 Ridge Road, north of Nederland southeast of State Hwy. 72 (Peak to Peak Scenic Byway) and Ridge Road, in Sections 12 & 13, T1S, R73W.

PLANNING COMMISSION TRAINING SESSION

Training Session - No Action Required.

EVENING SESSION - 5:30 PM

Docket BCCP-06-001: AUTHORIZATION TO INITIATE AMENDMENT TO THE BOULDER COUNTY COMPREHENSIVE PLAN: SUSTAINABILITY ELEMENT

Request for the Planning Commission authorization pursuant to CRS 38-20-106 et. seq. for staff to begin development of a Sustainability Element for inclusion into the Boulder County Comprehensive Plan; by the Land Use Department for Boulder County; in accordance with the Boulder County Land Use Code. The proposed project includes County-wide unincorporated lands in all Zoning Districts.

ADJOURNED

Detailed information regarding these items is available for public examination at the Boulder County Land Use website at **http://www.co.boulder.co.us/lu** or at our office located at 2045 13th Street, corner of 13th and Spruce Street in Boulder or by calling (303) 441-3930.

Free Parking in the City of Boulder CAGID lots is available for Planning Commission hearing participants. See staff at hearing for city parking vouchers.

Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

Published in the Daily Times-Call, Longmont, Colorado, November 3, 2006.

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930
http://www.bouldercounty.us/lu/

PUBLIC HEARING
BOULDER COUNTY, COLORADO
PLANNING COMMISSION

DATE:	November 15, 2006
TIME:	1:30 P.M. (Afternoon Session)
	5:30 P.M. (Evening Session)
PLACE:	Hearing Room, Third Floor, County Courthouse, Boulder

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Request for Approval of a Special Use Review / Site Specific Development Plan review for a 140 foot tall tower (Telecommunications Facility requiring a new structure and exceeding the height limitation of the zoning district); by James W. Guercio; in accordance with the Boulder County Land Use Code. The proposed property is located in the Forestry (F) Zoning District, at 99 Ridge Road, north of Nederland, southeast of State Hwy. 72 (Peak to Peak Scenic Byway) and Ridge Road, in Sections 12 & 13, T1S, R73W.

Tom Mayer
County Commissioner

Ben Pearlman
County Commissioner

Will Toor
County Commissioner

PLANNING COMMISSION TRAINING SESSION
Training Session – No Action Required.

EVENING SESSION – 5:30 PM

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ADJOURNED

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Published: November 3, 2006 -- Daily Times-Call

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BOULDER COUNTY PLANNING COMMISSION AGENDA

November 15, 2006
Afternoon Session – 1:30 P.M.
Evening Session – 5:30 P.M.
Hearing Room, Third Floor, Boulder County Courthouse

PUBLIC HEARINGS

AFTERNOON SESSION – 1:30 PM

1. APPROVAL OF MINUTES/MISCELLANEOUS BUSINESS
Approval of the ***October 18, 2006*** Planning Commission Minutes.

2. Docket V-06-007: RIDGLEA HILLS (Ellis) Easement Vacation

Request:	Request for a vacation of a 50-foot wide platted easement for a gas line that is no longer in use.
Location:	At 981 Ravenwood Road, Lots 4-7 Block 4, and Lots 1, 2 and 4-6 Block 5 of Ridglea Hills, in Section 35, T1N, R70W
Zoning:	Forestry (F)
Applicant:	Owen Ellis
Agent:	David Beal

(Staff Planner: Janice Biletnikoff)

3. Docket SU-06-016: CINGULAR WIRELESS (CEMEX Inc.) Telecommunications Facility SU/SSDP

Request:	Special Use Review / Site Specific Development Plan for a telecommunications facility to allow three (3) groups of panel antennas and attendant equipment at the top of the CEMEX cement plant silo. The antennas will be mounted flush with the side of the silo, and the equipment will be placed on the roof deck of the silo.
Location:	At 5134 Ute Hwy., south of Ute Hwy., east of North Foothills Hwy., in Sections 20, 21, 27, 28, and 29, T3N, R70W
Zoning:	Agricultural (A)
Applicant:	Cingular Wireless c/o Rick Sullivan
Prop. Owner:	CEMEX Inc. c/o Nolan Fry
Agent:	Steve Kelly / Cascadia PM, LLC

(Staff Planner: David Callahan)

Tom Mayer
County Commissioner

Ben Pearlman
County Commissioner

Will Toor
County Commissioner

4. **Docket SU-06-006 GUERCIO Telecommunications Facility SU/SSDP**

Request: Special Use Review / Site Specific Development Plan review for a 140 foot tall tower (Telecommunications Facility requiring a new structure and exceeding the height limitation of the zoning district).
Location: At 99 Ridge Road, north of Nederland, southeast of State Hwy. 72 (Peak to Peak Scenic Byway) and Ridge Road, in Sections 12 & 13, T1S, R73W
Zoning: Forestry (F)
Applicant: James W. Guercio
Agents: Bob Perletz / Winston Associates
Todd Burke
(Staff Planner: Greg Oxenfeld)

5. **PLANNING COMMISSION TRAINING SESSION**

Training session – No Action Required.
(Land Use Director: Graham Billingsley)
(Chief Planner: Dale Case)
(Asst. County Attorney: Barbara Andrews)

EVENING SESSION – 5:30 PM

6. **Docket BCCP-06-001: AUTHORIZATION TO INITIATE AMENDMENT TO THE BOULDER COUNTY COMPREHENSIVE PLAN: SUSTAINABILITY ELEMENT**

Request: Planning Commission authorization pursuant to CRS 38-20-106 et seq for staff to begin development of a Sustainability Element for inclusion into the Boulder County Comprehensive Plan
Location: County-wide unincorporated lands
Zoning: All Districts
Applicant: Land Use Department for Boulder County
(Staff Planner: Peter Fogg - Long Range Planning Manager)

ADJOURNED

Detailed information regarding these items, including maps and legal descriptions, is available for public examination on the Boulder County Land Use website at http://www.co.boulder.co.us/lu or at our office located at 2045 13th Street, Boulder, Colorado 303-441- 3930.

Post Office Box 471◆ Boulder, Colorado 80306

Land Use Department

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2045 13th Street ◆ 13th & Spruce Streets ◆ Boulder, Colorado 80302 ◆ (303) 441-3930

http://www.bouldercounty.us/lu/

BOULDER COUNTY PLANNING COMMISSION

MINUTES

November 15, 2006

AFTERNOON SESSION -- 1:30 PM

EVENING SESSION -- 5:30 PM

Hearing Room, Third Floor,

County Courthouse, Boulder

{Approved – January 17, 2007}

PUBLIC HEARINGS

AFTERNOON SESSION -- 1:30 PM

On Wednesday, November 15, 2006, the Boulder County Planning Commission held a regular afternoon session, convening at 1:34 p.m. and adjourning at 5:30 p.m.

Commissioners Present: Karen Berry (Presiding Chair), Janet Ackermann, Gerald Caplan, Ron Goodman, Scott Holwick, Karl Kurtz, Sharon Menard, Mathew Morrison, and Garry Sanfacon.

Staff Present: Graham Billingsley, Janice Biletnikoff, David Callahan, Dale Case, Michelle Krezek, Greg Oxenfeld, Barbara Andrews (Assistant County Attorney), and Martha Perez.

Interested Other(s): 10-20

MINUTES/MISCELLANEOUS BUSINESS
{DAT Tape 1}

Commissioner Berry and the Planning Commission wished Commissioner Mayer well on his recovery from his surgery. Secondly, they welcomed Commissioner Scott Holwick to the Planning Commission.

APPROVAL OF MINUTES

MOTION: **Janet Ackermann MOVED that the Boulder County Planning Commission APPROVE the Minutes for October 18, 2006 as written.**

SECOND: **Mathew Morrison and Sharon Menard.**

VOTE: **Motion PASSED Unanimously. {9 to 0}**

Docket V-06-007: RIDGLEA HILLS
(Ellis) Easement Vacation
{DAT Tape 1}

JANICE BILETNIKOFF, Planner I, presented the application for Owen Ellis for a vacation of a 50-foot wide platted easement for a gas line that is no longer in use. The proposed project is located in the Forestry (F) Zoning District at 981 Ravenwood Road, Lots 4-7 Block 4, and Lots 1, 2 and 4-6 Block 5 of Ridglea Hills, in Section 35, T1N, R70W. Staff recommended CONDITIONAL APPROVAL as outlined in the staff recommendation, dated November 15, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: Owen Ellis (Applicant) 981 Ravenwood Road, Boulder; and David A. Beal (Architect) – 1526 Spruce Street, Ste. 201, Boulder.

PUBLIC HEARING CLOSED.

MOTION: **Sharon Menard MOVED that the Boulder County Planning Commission CONDITIONALLY APPROVE and recommend that the Board of County Commissioners conditionally approve Docket V-06-007: RIDGLEA HILLS (Ellis) Easement Vacation, subject to the one (1) condition, and including analysis criteria B, E and F as noted in the staff recommendation.**

CONDITIONS of APPROVAL:

1. The vacation shall be granted only for those lots expressly included in this proposal, by the property owners as signing as Co-Applicants. Specifically, Lots 4, 5, 6, and 7 of Block 4 and Lots 1, 2, 4, 5, and 6 of Block 5, all of which are located on Ravenwood Road, in the Ridglea Hills subdivision.
2. **The vacation becomes effective upon recordation of the Board's resolution of approval with the Boulder County Clerk and Recorder's office. Prior to recordation, the applicant must complete all conditions of approval.**
3. **Following approval or conditional approval of a vacation, the applicant shall submit to the Land Use Department all necessary documents required by the conditional approval showing compliance with the conditional approval.**
4. **The Land Use Department staff shall record the Commissioner's resolution of approval with the Clerk and**

Recorder's office within 45 days of the Commissioners' approval unless otherwise specified.

SECOND: **Mathew Morrison.**

VOTE: **Motion PASSED Unanimously. {9 to 0}**

Docket SU-06-016: CINGULAR WIRELESS
(CEMEX Inc.) Telecommunications Facility
SU/SSDP
{DAT Tape 1}

DAVID CALLAHAN, Senior Planner, presented the application for Cingular Wireless c/o Rick Sullivan (Applicant) and CEMEX, Inc. c/o Nolan Fry (Property Owner) for a Special Use Review / Site Specific Development Plan for a telecommunications facility to allow three (3) groups of panel antennas and attendant equipment at the top of the CEMEX cement plant silo. The antennas will be mounted flush with the side of the silo, and the equipment will be placed on the roof deck of the silo. The proposed project is located in the Agricultural (A) Zoning District, at 5134 Ute Hwy., south of Ute Hwy., east of North Foothills Hwy., in Sections 20, 21, 27, 28, and 29, T3N, R70W . Staff recommended APPROVAL, subject to the staff recommendation dated November 15, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: Rick Sullivan for Cingular Wireless (Applicant).

PUBLIC HEARING CLOSED.

{DAT Tape 1}

MOTION: **Mathew Morrison MOVED that the Boulder County Planning Commission APPROVE and recommend that the Board of County Commissioners approve Docket SU-06-016: CINGULAR WIRELESS (CEMEX Inc.) SU/SSDP, subject to the seven (7) conditions set forth in the staff recommendation, with Condition #3 to be edited to read the "heights."**

CONDITIONS of APPROVAL:

1) The antennae, and all support structures shall be mounted to the silo as noted in the application documents.
2) The color of the antenna shall match the existing silo. Before the issuance of a building permit, the applicant shall provide a color sample for review and approval by the Land Use Department.
3) The heights of the proposed antennae shall not exceed that which is depicted in the application materials.
4) The Applicant shall submit a Development Agreement to be reviewed and approved by the County Attorney and Land Use staff before its recordation.

5) There shall be a review hearing every seven years from the date of approval of this Special Use, and at seven-year intervals thereafter, to consider evolving telecommunication technologies and alternatives. During the hearing, if it is determined that the telecommunication facility approved herein is no longer needed, the owner of such telecommunication facility shall remove the facilities at their own expense.
6) The Applicant shall agree to allow collocation of other telecommunication providers, if reasonable accommodations can be reached and subject to approval according to the applicable County land use review process.
7) The applicant shall be subject to the terms, conditions, and commitments of record for SU-06-016: CINGULAR WIRELESS (CEMEX Inc.) SU/SSDP.

SECOND: **Janet Ackermann.**

VOTE: **Motion PASSED Unanimously. {9 to 0}**

Docket SU-06-006: GUERCIO
Telecommunications Facility
SU/SSDP
{DAT Tape 1}

Commissioner Berry disclosed on the record that she was going to excuse herself from this docket because her and her husband's company will in all likelihood be working with Mr. Perletz (the Applicant's agent) with a joint client sometime in the near future. Therefore, Commissioner Menard presided as the Planning Commission Chair during this agenda item.

Commissioner Sanfacon also disclosed on the record that he was going to excuse himself from this docket because he was currently being paid by Mr. Guercio (the applicant) for another projects in the Nederland area.

GREG OXENFELD, Planner II, presented the application for James W. Guercio for a Special Use Review / Site Specific Development Plan review for a 140-foot tall tower (Telecommunications Facility requiring a new structure and exceeding the height limitation of the district). The proposed project is located in the Forestry (F) Zoning District, at 99 Ridge Road, north of Nederland, southeast of State Hwy. 72 (Peak to Peak Scenic Byway) and Ridge Road, in Sections 12 & 13, T1S, R73W. Staff recommended DENIAL, as outlined in the staff recommendation, dated November 15, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: Bob Perletz (Agent) Winston & Associates – 4696 Broadway, Boulder; Todd Burke – 1050 Pine Street, Gold Hill; Roger Cornell – 998 Hw. 72, Nederland; Andrew Cookler – 479 Hurricane Hill, Nederland; Ross and Susan Dicken – 501 Ridge Road, Nederland; Wade Lukiallow – 27036 Boulder County Drive, Nederland; Charles Pringle (Division Chief for Boulder County Sheriff's Office); and Ken Robinson (Town Marshall for Nederland) – 1453 Ridge Road, Nederland.

PUBLIC HEARING CLOSED.

{DAT Tape 1}

MOTION: **Mathew Morrison MOVED that the Boulder County Planning Commission <u>DENY</u> and recommend that the Board of County Commissioners deny <u>Docket SU-06-006: GUERCIO Telecommunications Facility SU/SSDP.</u>**

SECOND: **Gerald Caplan.**

VOTE: **Motion PASSED Unanimously. {7 to 0}**

Commissioner Morrison left the Planning Commission's meeting at this time.

MOTION: **Karl Kurtz MOVED that the Boulder County Planning Commission <u>RECOMMEND</u> to the Board of County Commissioners that they <u>INITIATE</u> a <u>DISCUSSION</u> with the Town of Nederland and appropriate other public and private entities regarding improvements to emergency telecommunications.**

SECOND: **Janet Ackermann.**

VOTE: **Motion PASSED Unanimously. {6 to 0}**

PLANNING COMMISSION TRAINING SESSION

At this time the Planning Commission and staff held a training session in the 3rd Floor Conference Room of the County Courthouse, Boulder. Therefore, this portion of the meeting was not recorded.

EVENING SESSION – 5:30 P.M.

On Wednesday, November 15, 2006, the Boulder County Planning Commission reconvened for an evening session at 5:30 p.m. and adjourned at 6:30 p.m.

Commissioners Present: Karen Berry (Presiding Chair), Janet Ackermann, Gerald Caplan, Ron Goodman, Scott Holwick, Karl Kurtz, Sharon Menard, Mathew Morrison, and Garry Sanfacon.

Staff Present: Graham Billingsley, David Callahan, Dale Case, Peter Fogg, Michelle Krezek, Barbara Andrews (Assistant County Attorney), and Martha Perez.

Interested Other(s): 1

Docket BCCP-06-001: BOULDER COUNTY COMPREHESIVE PLAN (BCCP) REVISION {DAT Tape 1}

PETER FOGG, Long Range Planning Manager, gave a brief overview of the Boulder County Comprehensive Plan Revision and requested authorization to proceed with development of a sustainability element and related amendments including goals, text, policies and maps for inclusion to the Boulder County Comprehensive Plan, as outlined in the staff recommendation, dated November 15, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: Dick Schillawski - 1160 N 119th Street, Lafayette.

PUBLIC HEARING CLOSED.

{DAT Tape 1}

MOTION: **Garry Sanfacon MOVED that the Boulder County Planning Commission AUTHORIZE, pursuant to CRS 38-20-106 et seq, the Land Use Department to commence appropriate study and a public process related to developing a Sustainability Element to be included within the Boulder County Comprehensive Plan. This effort will also involve amendments to the existing maps and text of the BCCP to address sustainability-related issues including but not limited to the impacts of structure sizes, benefits of a green building initiative, desirability of an expanded transferable development rights program, and need to preserve community and rural character within the unincorporated county.**

SECOND: **Sharon Menard.**

VOTE: **Motion PASSED Unanimously. {9 to 0}**

ADJOURNED

Detailed information regarding these items, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado 303-441- 3930